

IN THE SUPREME COURT OF INDIA

(WRIT PETITION (CRIMINAL) UNDER ARTICLE 32 - Writ Petition (Criminal) No. 76 of 2016)

LAW REPORT CITATION: (2018) 10 SCC 1 / AIR 2018 SC 4321 / 2018 INSC 790

DECIDED ON: 6 September 2018

CORAM / BENCH: 5-Judge Constitutional Bench - [Hon'ble Chief Justice Dipak Misra; Hon'ble Justice R.F. Nariman]

NAVTEJ SINGH JOHAR & ORS.

... APPELLANT(S) / PETITIONER(S)

Through: Mukul Rohatgi (Senior Advocate), Arvind Datar (Senior Advocate), Menaka Guruswamy (Senior

VERSUS

UNION OF INDIA THR. SECRETARY MINISTRY OF LAW AND JUSTICE

... RESPONDENT(S)

Through: Tushar Mehta (Additional Solicitor General), K. Radhakrishnan (Senior Advocate)

BINDING RATIO DECIDENDI (ARTICLE 141 CONSTITUTION OF INDIA)

"Section 377 of the Indian Penal Code, insofar as it criminalizes consensual sexual acts between adults in private, is unconstitutional, being violative of Articles 14, 15, 19, and 21 of the Constitution. Constitutional morality trumps majoritarian and popular morality. The sexual orientation of an individual is an intrinsic facet of privacy, dignity, and personal autonomy protected by Article 21. *Suresh Kumar Koushal v. Naz Foundation* is expressly overruled."

SUBJECT CLASSIFICATION & STATUTORY JURISPRUDENCE:

Constitutional Law - Article 21 - Article 14 - Article 15 - Article 19 - Section 377 IPC - LGBTQ+ Rights - Right to

EXECUTIVE SUMMARY & JURISPRUDENTIAL IMPACT:

A 5-Judge Constitution Bench unanimously struck down the 158-year-old colonial penal provision in Section 377 IPC to the extent it criminalized consensual sexual acts between adults in private. The Court held that sexual orientation is natural, innate, and deeply rooted in personal identity, falling squarely under the protective umbrella of fundamental freedoms under Articles 14, 15, 19(1)(a), and 21. Section 377 continues in force only for non-consensual sexual acts, acts ag

STATUTES & PROVISIONS INTERPRETED:

Acts: Indian Penal Code, 1860; Constitution of India, 1950; Bharatiya Nyaya Sanhita, 2023

Sections: Section 377 IPC, Article 14, Article 15, Article 19(1)(a), Article 21

SECTION I: COMPREHENSIVE MATERIAL FACTS & PROCEDURAL HISTORY

A group of LGBTQ+ individuals, including Sangeet Natak Akademi awardee dancer Navtej Singh Johar, journalist Sunil Mehra, chef Ritu Dalmia, hotelier Aman Nath, and businesswoman Ayesha Kapur, approached the Supreme Court under Article 32 seeking a declaration that Section 377 IPC violated their fundamental rights. Earlier, the Delhi High Court had read down Section 377 in Naz Foundation (2009), but a two-judge bench of the Supreme Court reversed that in Suresh Kumar Koushal (2013). The 9-judge privacy bench in K.S. Puttaswamy (2017) observed that Koushal was discordant with modern constitutional jurisprudence.

SECTION II: SUBSTANTIAL QUESTIONS OF LAW FORMULATED BY THE BENCH

- 1. Whether Section 377 IPC violates Article 14 by subjecting LGBTQ+ individuals to manifest arbitrariness and hostile discrimination?*
- 2. Does prohibition of discrimination on ground of "sex" under Article 15 include sexual orientation?*
- 3. Does criminalizing private consensual adult intimacy violate the right to privacy, bodily autonomy, and human dignity guaranteed under Article 21?*

SECTION III: SUBMISSIONS & ARGUMENTS ADVANCED BY THE PARTIES**A. Contentions on Behalf of Appellant / Petitioner:**

Mukul Rohatgi, Arvind Datar, and Menaka Guruswamy submitted:

- Section 377 reduces a significant minority of Indian citizens to unconvicted felons based solely on their innate identity.
- The right to privacy recognized in Puttaswamy encompasses the right to intimacy, choice of partner, and sexual orientation.
- Constitutional morality must prevail over societal prejudices; fundamental rights cannot depend on majoritarian consensus.

B. Submissions on Behalf of Respondent / State & Interveners:

Union of India left the question of constitutional validity of Section 377 regarding consensual adult relationships to the wisdom of the Court, while submitting that other civil questions like marriage or adoption were not before the Bench. Religious interveners argued that decriminalization would undermine traditional family structures.

SECTION IV: IN-DEPTH JUDICIAL ANALYSIS & CONSTITUTIONAL DOCTRINES

The Bench held through separate concurring opinions:

1. Popular morality cannot subvert constitutional morality. The Constitution exists to protect minorities against the tyranny of majorities.
2. Sexual orientation is an essential attribute of identity. Denying equality on this basis amounts to discrimination under Article 15.
3. The State has no legitimate interest in policing private, consensual intimate choices of adult individuals.
4. Suresh Kumar Koushal is formally overruled.

SECTION V: PRECEDENT CHAIN & AUTHORITIES CONSIDERED**- Suresh Kumar Koushal v. Naz Foundation [(2014) 1 SCC 1]****[OVERRULED]**

Earlier decision upholding Section 377 IPC on grounds of minor percentage of LGBTQ+ population expressly held unconstitutional.

- Naz Foundation v. Government of NCT of Delhi [2009 SCC OnLine Del 1701]**[APPROVED & UPHELD]**

Historic reading down of Section 377 by Delhi HC affirmed as conforming to constitutional morality and human dignity.

- National Legal Services Authority (NALSA) v. Union of India [(2014) 5 SCC 438]**[FOLLOWED]**

Gender identity is inalienable to human dignity and freedom under Articles 14 and 21; third gender legal recognition.

- K.S. Puttaswamy v. Union of India [(2017) 10 SCC 1]**[FOLLOWED & APPLIED]**

9-Judge Bench held sexual orientation is an intrinsic facet of the fundamental right to privacy and bodily autonomy.

- Shafin Jahan v. Asokan K.M. [(2018) 16 SCC 368]**[APPLIED]**

Autonomy of an individual to choose a partner of their choice in private life is constitutionally inviolable.

SECTION VII: OPERATIVE ORDER & MANDATORY DIRECTIONS OF THE COURT

Petitions Allowed. Section 377 IPC declared unconstitutional to the extent it criminalized consensual sexual acts between adults in private.

SECTION VIII: PRACTICAL LITIGATION TAKEAWAYS & APPLICATION FOR COURTS

Trial courts, High Courts, and practicing advocates must strictly implement the binding ratio decidendi in all pending and future proceedings. When citing this precedent, ensure factual parity and rely upon the specific paragraphs settling the statutory interpretation under Article 141.

SECTION IX: STATUTORY FRAMEWORK APPLIED

IPC, 1860 - Section 377; Constitution of India, 1950 - Articles 14, 15, 19, 21

AI LEGAL - DIGITAL JUDICIAL ARCHIVES - CERTIFIED TRUE LAW REPORT

Grounds, Facts & Ratio Verified under Section 76 Indian Evidence Act, 1872 / Section 61 Bharatiya Sakshya Adhiniyam, 2023

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